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Investigative Report

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**UBC Law Student
Gives Legal
Advice to the
Ojibwa People by
Using
Grandparents'
Time Machine**

By Katie McGreer

**Student's travel takes
her to Sault Ste.
Marie prior to the
formation of the
Robinson-Huron Treaty
of 1850**

**Woman's actions could
have a lasting impact
on Canadian Aboriginal
Treaty Rights**

TWO MONTHS ago, in early March 2010, Acta Visim, a third year law student at UBC, found a time machine in her grandparent's attic. Since then, she has been using the contraption to travel back to the mid 19th century and advise the Ojibwa People of Lake Huron of their legal rights. The time machine travels through space, so Ms. Visim is able to meet with the Ojibwa in Sault Ste. Marie, Ontario.

No one has been in contact with Ms. Visim for the last three days. Last reported sighting of the law student was Friday April 23rd.

Friends say that Ms. Visim has been traveling back to the past since mid-March. She goes a few times a week to collect information, learn the language, and gain the Ojibwa nations' trust.

In an attempt to explain her actions, Ms. Visim's family reports that she has always been troubled by what she perceives as the lack of integrity of the treaty making process. Visim is reportedly passionate about constitutional law issues and in particular aboriginal rights in Canada.

The police uncovered notes from Ms. Visim's class on Aboriginal and Treaty Rights. They found the following extracts from the Royal Commission on Aboriginal Peoples 1996 report underlined and highlighted in her binder:

"While the wording in both treaties provided that Ojibwa hunting and fishing would be undisturbed, the written treaty describes the agreement as a total surrender of territory, terminology that had not been agreed to in negotiations [...] Ojibwa understood that the treaties involved only a limited use of their land ..." ⁱ

Authorities speculate that Ms. Visim is trying to clarify the terms of the agreement with the Ojibwa people before they sign the treaty. If she does indeed seek to lend a "helping" hand, it would come as no surprise seeing as Ms. Visim also underlined the following in her text:

"negotiation and dialogue did not, and could not venture into the meaning

of specific terminology, legal or otherwise, and remained at a broad general level, owing to time and language barriers [...] under these circumstances, conceptual and language barriers would have been difficult to overcome"ⁱⁱ.

No one knows how much contact Acta Visim has already had with either party to the agreement or what legal advice, if any, she has provided. Professor Doom, from the University of Cynicism's Faculty of Law is overcome with anger at Visim's endeavor:

"I have little confidence in the ability of a 3rd year law student to provide meaningful advice to parties striking a momentous deal. Her impulsiveness is a clear indication that she is incapable of rational,

sound thinking. I am baffled that someone would be presumptuous enough to meddle with history. Ms. Visim is facing a quagmire and she already has one foot in the bog."

While the consequences of any actions Ms. Visim may take are unknown, the risks are high. Any intervention could change the course of history. Professor Hope, from Utopia University applauds Visim for her sense of initiative:

"I am happy to know that today's youth are not complacent. We need more people like Ms. Visim who are willing to take a stand for what they think is right and who aren't afraid to get their hands dirty."

Dr. Hope maintains that Visim's intercourse with history could be a good

thing. It may, according to Hope, lead to more a more fair and equitable outcome for the Ojibwa people. The spillover effect, she projects, would be fantastic.

Meanwhile, the government has put together an intervention group and they are devising plans – and contingency plans – to deal with the consequences of Visim's actions. Thus far, no one else has been able to use the time machine; Visim secured the primary transmitter and thrown away the deactivator.

No one has figured out the passcode.

In the meantime, while we wait with baited breath for Ms. Visim to return, we can take a look at the history, which may be changing, before our eyes.

Treaty Making in 19th century Canada

FROM the time Europeans stepped foot on North American soil they were striking bargains with Aboriginal Peoples. Agreements were first born out of necessity: Europeans needed the aboriginal's knowledge of the land to survive. As time carried on, bargains were struck for economic reasons; aboriginal and non-aboriginal people divided labour in a way that was profitable for both parties. The fur trade is a perfect example of a mutually beneficial economic enterprise.

Additionally, aboriginal people were valuable allies for Europeans during times of war. Early treaties reflected the nature of these

relationships; the agreements were generally even-handed and good spirited.

But the 19th century marked the end of nation-to-nation style negotiations and treaty makingⁱⁱⁱ. Britain sought to exercise its sovereignty in Canada and it considered First Nations' people as subjects of the Crown. This change in attitude is attributed to three factors:

First, Aboriginals were no longer needed as war allies after the war of 1812.^{iv}

Second, Aboriginal people no longer outnumbered non-aboriginals. Prior to the war of 1812, aboriginals outnumbered non-aboriginals by ten to one.^v The demographics quickly changed after the war.

In 1814, the settler population was 95,000. Then Britain started to encourage immigration to "British North America". By 1850 the settler population had grown tenfold- it exceeded 950,000^{vi}.

In less than 35 years the tables had turned and the British population grew to outnumber aboriginals by ten to one^{vii}.

The third factor contributing to the end of nation-to-nation stle bargaingin is the decline of the fur trade. As the industry waned there were fewer and fewer shared economic interests between Britain and aboriginals. This meant that cooperation with aboriginal people was not necessary for Britain's economic well-being^{viii}.

This change in the power

dynamic was accompanied by a rise of interest in Canadian territory.

In the mid nineteenth century Britain started to push its citizens to settle in Canada. Most of the treaties formed with aboriginal peoples in the late 18th century and the early 19th century were for the purpose of appropriating land and "freeing it up" for British citizens. In it's report on Displacement and Assimilation, the Royal Commission on Aboriginal Peoples explains Britain's interest in Canada:

"After the War of 1812, colonial powers [...] turned their attention to obtaining Indian lands for settlers, particularly agricultural land for the United Empire Loyalists in southern Ontario. So began a new and intensive

policy of purchasing Indian lands"^{ix}.

More and more people sought to move to Canada permanently. Agriculture was quickly developing and as such setting up a regime whereby settlers could have exclusive use and occupation of land was a priority^x.

However, there were other, more lucrative reasons to retain the land. Canada is rich in resources and the opportunity for exploitation and economic gain was ripe^{xi}. When Upper and Lower Canada joined in 1841, leases were issued to companies, which permitted exploration and mining around Lake Superior and Lake Huron-Ojibwa territory^{xii}.

By 1845, it was well known that there were large copper deposits around Lake Huron and so the

British Crown issued orders-in-council to allow for the licensing of prospectors seeking to mine there^{xiii}.

From that point on the nature of treaty making changed. Britain sought to secure access to the mineral and forestry resources, which required dealings with Aboriginal peoples occupying those lands^{xiv}.

Treaties were the best means to this end. Peace with aboriginal peoples was important; Britain knew it would have trouble securing mineral rich lands without the native peoples' cooperation. Without their goodwill, failure loomed.

Aboriginal people were capable of resistance. For instance in April 1846, the Chief of Garden River threatened a land surveyor

working for the British government.^{xv}

Aboriginal people also petitioned the central government in Canada. On June 10, 1846, Shinguacouse sent a letter to the Governor General complaining that he was being disturbed, that men were moving onto his territories without his permission, and that he was not being compensated for their intrusions^{xvi}.

Chief Singwakonce and Chief Nebanagoching from Sault Ste Marie also petitioned the Governor General. They said the following:

"Can you lay claim to our land? If so, by what right? Have you conquered it from us? You have not, for when you first came among us your children were few and weak, and the war cry of the Ojibway

struck terror to the heart of the pale face. But you came not as an enemy; you visited us in the character of a friend. Have you purchased it from us, or have we surrendered it to you? If so when? And how? And where are the treaties?"^{xvii}

Perhaps the most striking case of resistance is the 1849 Mica Bay incident. Led by Alan Macdonell, an armed "band of Indians" and Métis traveled 200 miles from Sault Ste. Marie to Mica Bay and attacked the Quebec Mining Company's installations. The government sent 100 rifles to suppress the "uprising"^{xviii}.

Shortly thereafter, a Special Commissioner was appointed to deal with the issue.

The Robinson-Huron Treaty

GIVEN the need for a political solution, and a thirst for economic advantage, in 1850 the British government appointed William Benjamin Robinson as a Special Commissioner and gave him the task of negotiating a treaty with the aboriginal people around Lake Superior and Lake Huron.

Robinson's mandate was simple: he was ordered to "buy as much land as possible, but not settle for less than "the north shore of Lake Huron and the mining sites along the eastern shore of Lake Superior".^{xix}

Robinson was given £7500 to secure the transaction (which included the cost of negotiation and the

expense of granting annuity payments).

Robinson was successful in striking a deal.

The Robinson-Superior Treaty was signed on September 7, 1850. Two days later, on September 9th, the Robinson-Huron Treaty was signed at Sault Ste. Marie, Canada (known today as the province of Ontario).

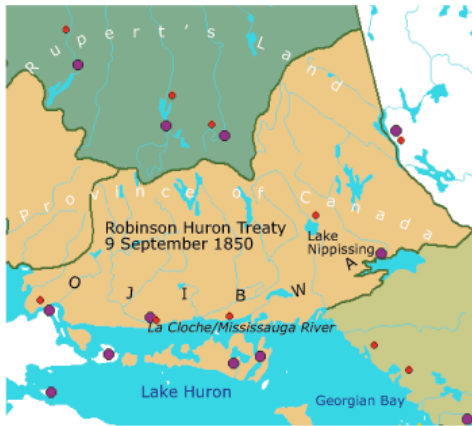
For an unknown reason, Acta Visim has taken an interest in the latter treaty. Dr. Hope guesses that it may have to do with the reserve terms of the second treaty (there were 21 land reserves formed in the Robinson-Huron treaty whereas only 3 were set out in the Robinson-Superior treaty). Whatever Ms. Visim's reasons, this report will focus on the treaty that is at stake.

Pursuant to the Robinson-Huron Treaty, the Ojibwa peoples agreed to "fully, freely, and voluntarily surrender, cede, grant, and convey"^{xx} full title and interest the following parcel of land:

the Eastern and Northern Shores of Lake Huron (including the Islands off the shores of the lake) and all the inland territory not owned by the Hudson Bay Company or otherwise unceded within the province of Canada.

This area constitutes 16,700 square miles of territory^{xxi}.

See above left of next page for and image of the land ceded.



As mentioned before, the Ojibwa retained exclusive rights to twenty-one reserves of land- the sites were included as part of the treaty in an annex.

Importantly, the Ojibwa people also retained the right to hunt and fish. This was the key to Robinson's bartering power. The treaty stipulates that:

"the said Chiefs and their Tribes [retain] the full

and free privilege to hunt over the Territory now ceded by them, and to fish in the waters thereof"

Remuneration for the land was held at £2000.

Annuities were provided for (subject to some limitations) and the treaty was signed by Robinson and Crown witnesses, and marked off by Ojibwa Chiefs^{xxii}.

The Integrity of the Treaty Making Process

ROBINSON'S mandate was to pursue the Crown's interest, buy land for the purposes of settlement, ensure resource extraction was possible, make an assertion of British sovereignty. By rendering the Robinson-Huron treaty he achieved these ends.

The Royal Commission on Aboriginal Peoples asserts that aboriginal people were routinely misled in their dealings with the Crown:

"In some, and perhaps many, of these transactions, the Indian nations thought they were conveying their land to the Crown for the limited purpose of authorizing the Crown to 'protect' their lands from incoming settlement"^{xxiii}

It is likely that the Ojibwa people knew they were permitting the Crown to use their land - especially in relation to the exploitation of subsurface minerals. But it is uncertain whether they knew the treaty was an unconditional surrender of land^{xxiv}.

The Commission further asserts that a total

transfer of rights was not agreed to during the negotiations between the Ojibwa and Robinson^{xxv}.

Although the Robinson-Huron Treaty guarantees that the Crown will not interfere with the Ojibwa's ability to hunt and fish, and despite the fact that they knew the British Crown would benefit from the treaty, the Commission thinks it is unlikely the Ojibwa people intended to transfer their land to Crown indefinitely^{xxvi}.

This points to a fundamental flaw of the treaty-making regime: no one knows the true intentions of the disadvantaged party. The treaties were written in English according to British law and custom. Even if the Ojibwa people received a literal translation of the treaty

terms, it is unlikely they had a full understanding of the legal implications of the agreement. There is no documentation of the Ojibwa people's understanding of the treaty. Oral histories have been transmitted but do not offer sufficient detail.

This seems to be one of Ms. Visim's underlying concerns. In the margins of her notes, she wrote the following:

What if a treaty does not actually embody the terms of the oral contract agreed to by the parties? How do we know what the Ojibwa intended?

Aboriginal treaties today: many questions remain about their meaning

THE Supreme Court of Canada says that aboriginal treaties are not like international treaties (i.e. like ones Canada would enter into with the United States, or China, or France). Instead aboriginal treaties are unique.

The court says aboriginal treaties have a "suis generis nature" which literally means, of its own kind^{xxvii}. Indeed, aboriginal treaties were formed under very different circumstances and often involved a broad set of rights.

A longstanding principle of interpretations in aboriginal treaty cases is that treaties relating to aboriginals should be construed liberally and that any doubts about the way something is expressed, or the meaning of a clause, should be

resolved in the interest of the aboriginal party^{xxviii}.

So where does this leave us? Even if we interpret a treaty liberally, what happens to the parts that remain unwritten and untold? Were the Ojibwa people misled in the formation of the Robinson-Huron treaty? Were they induced to enter the contract by misrepresentations by the Crown? Was there an honest misunderstanding regarding the terms? Or did the Ojibwa people have a full understanding of the bargain?

Are these the issues Ms. Visim is trying to resolve?

While Ms. Visim may be one step closer to the truth, in the absence of evidence, the courts will

presume that the Crown conducted its matters fairly and that it intended to fulfill its promises^{xxix}.

Whether this presumption is a reasonable one is the subject of debate. Lawyer Michael Coyle argues that the Crown has failed to honour its treaties. He makes the following point:

"In many instances, however, the Crown has not honoured its side of the treaties. There are now more than 150 aboriginal land claims outstanding in Ontario." ^{xxx}

Maybe Acta Visim will have some light to shed on the issue upon her return. Maybe she will be able to give a voice to those whom have been muted over time.

In the margins of her notebook, Ms. Visim

accuses the Crown of sharp dealing. She wrote "then and now: making unfair treaties and then failing to fulfill its promises." We must ask ourselves about the accuracy of Ms. Visim's statements and about the implications they carry.

To what extent did the government embark on a trajectory whereby it could slight the aboriginal people and pursue Crown interests at their expense?

Perhaps the confusion regarding aboriginal treaties can be pinned on poor planning. A notable flaw with the treaty system in Canada is that it lacks institutional infrastructure^{xxxi}. Since treaties were executive acts of the Crown, no legislature presided over them. There was no governing body appointed

to oversee their implementation or execution. As such, it was (and still is) hard to hold the government accountable to its promises (but easy for the government to take advantage of the treaties' favourable terms).

Nevertheless, the Supreme Court of Canada (SCC) maintains that the Crown cannot shirk its duties or evade its responsibilities under treaties.

In *Guerin v. The Queen*, the SCC states that "the Crown cannot promise the band that it will obtain a lease of the latter's land on certain stated terms, thereby inducing the band to alter its legal position by surrendering the land, and then simply ignore that promise to the band's detriment."^{xxxii}

And indeed, Aboriginal Treaty Rights are now Constitutional Rights in Canada. Section 35(1) of the Constitution Act 1982 states that "(1) The existing aboriginal and treaty rights of the aboriginal peoples of Canada are hereby recognized and affirmed."

This begs the question: has the government failed to deliver to the Ojibwa people?

An interesting point of departure would be to look at their hunting and fishing rights since, presumably, the guarantee of these rights induced Ojibwa Chiefs to enter into a treaty with the Crown in 1850.

Hunting and fishing rights have not always been upheld, either by the government or by past courts. We can draw an

example from Pawis, McGregor, et al. v. The Queen, a judgment that was rendered in 1979^{xxxiii}.

Between 1975 and 1977 four Ojibwa nation members were arrested for fishing in a traditional manner (where provincial legislation- the *Ontario Fisheries Regulations*- prohibited it). On separate occasions, the men were arrested for contravening the provincial regulation.

The Ojibwa members maintained that it was their right to fish for food at places covered by the Robinson-Huron Treaty, which their Indian bands had signed in 1850. The court dismissed the actions!

The court compared the Robinson-Huron treaty to a contract between two private parties and stated

that the Government did not intend for the fishing rights to be an unconditional privilege that would last forever. Instead, the court found that their right died when their forefathers whom signed the contract passed away. Thus, these Ojibwa men were deprived of their right pursuant to the treaty while the Crown held permanent title to the land they had surrendered.

This judgment was based on an understanding of aboriginal treaties that has been rejected by the Supreme Court of Canada. As mentioned in this article, aboriginal treaties are not contracts; they are *suis generis* legal creatures.

This decision would probably be overturned today given the advances made in the field of

aboriginal law however it serves as an example of how treaties have been dealt with in the past, and the hurdles aboriginal people have had to overcome over time.

ANOTHER right granted by the Robinson-Huron treaty that has come under public scrutiny is that of Ojibwa reserves.

The reserves were set aside as agreed to in 1850, but in some cases, not enough land was apportioned.

The Mississauga First Nation recently contended a land survey from 1852. They argued they had not been given the land they were promised by the Robinson-Huron Treaty.

The result: after 140 years they received 28,300 hectares of Crown-owned

land in Northern Ontario. The Chief, Doug Daybutch said, "It certainly does right a wrong." But, he added, "over the years, the loss of the land has really hurt the community."^{xxxiv}

And so, while there is a glimmer of hope in that the government was willing to adhere to the original agreement, we see that the Ojibwa people have, in many ways, gotten the short end of the stick in their bargaining with the government.

Implications of Acta's Interference with History

The Robinson treaties are unique and Visim's decision to intervene in September 1850 may have been strategic. The Robinson Treaties mark the

start of Britain's "cash-for-land" policies on treaty making. The BC government recognizes the impact the Robinson treaties had on subsequent land treaties:

"Much of the groundwork, moreover, for future treaty-making procedures in Canada was being set by the Robinson-Superior and Robinson-Huron Treaties of 1850. The Robinson Treaties [...] did not establish a formula for future treaty activities but provided a tidier method"^{xxxv}

No one knows what will happen when Ms. Visim returns from 1850. Her actions may have a profound effect on the past, the present and the future. It may be good news for aboriginal groups in Canada, but it will also change the political and legal landscape of

Canada. The results of her foray into the past will be contingent on the advice she gives the Ojibwa people. As such we will have to see what the future has in store.